

The Goods and Services Tax (Compensation to States) Amendment Act, 2018

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The Goods and Services Tax (Compensation to States) Amendment Act, 2018

UNION OF INDIA

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The Goods and Services Tax (Compensation to States) Amendment Act, 2018

Act 34 of 2018

Published in Gazette of India on 29 August 2018

Not commenced

[This is the version of this document from 29 August 2018.]

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An act further to amend the Goods and Services Tax (Compensation to States) Act, 2017.

BE it enacted by Parliament in the Sixty-ninth Year of the Republic of India as follows:

1.

Short title and commencement.

(1)

This Act may be called the Goods and Services Tax (Compensation to States) Amendment Act, 2018.

(2)

It shall come into force on such date as the Central Government may, by notification in the Official Gazette, appoint.

2.

In section 7 of the Goods and Services Tax (Compensation to States) Act, 2017 (hereinafter referred to as the principal Act), in sub-section (4), in clause (b), in sub-clause (ii), for the words "Central Board of Excise and Customs", the words "Central Board of Indirect Taxes and Customs" shall be substituted.

3.

In section 10 of the principal Act, after sub-section (3), the following sub-section shall be inserted, namely:

"(3A) Notwithstanding anything contained in sub-section (3), fifty per cent. of such amount, as may be recommended by the Council, which remains unutilised in the Fund, at any point of time in any financial year during the transition period shall be transferred to the Consolidated Fund of India as the share of Centre, and the balance fifty per cent. shall be distributed amongst the States in the ratio of their base year revenue determined in accordance with the provisions of section 5:

Provided that in case of shortfall in the amount collected in the Fund against the requirement of compensation to be released under section 7 for any two months' period, fifty per cent. of the same, but not exceeding the total amount transferred to the Centre and the States as recommended by the Council, shall be recovered from the Centre and the balance fifty per cent. from the States in the ratio of their base year revenue determined in accordance with the provisions of section 5."

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